

26IWUD00773 26IWUD00773

County: los-angeles

Division: Civil Law and Motion

Department: 8

Hearing date: 2026-09-02

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Case Number: 26IWUD00773 Hearing Date: September 2, 2026 Dept: 8

TENTATIVE:

The demurrer is overruled and the motion to strike is denied. First, the Plaintiff filed a timely first amended complaint pursuant to Code of Civil Procedure section 472, subdivision (a). Second, the first amended complaint states a cause of action for unlawful detainer based on nonpayment of rent, as the three-day notice to pay or quit appears on its face to comply with Code of Civil Procedure section 1161(2) and Plaintiff alleges service of the notice in conformity with Code of Civil Procedure section 1162. The original three-day notice, which is attached to the first amended complaint, did not unlawfully seek payment for the month of March 2026, as the complaint alleged rent payments were due on the first of each month, and the notice was served on March 6, 2026 after the Defendant allegedly failed to pay rent on March 1, 2026. As the Plaintiff argued in its opposition, it need not attach the lease agreement to the complaint for a nonpayment of rent case, even if the Plaintiff requests attorneys' fees.

The Defendant is ordered to file an answer within five days' notice of this ruling.